

DISTRICT COURT, METRO COUNTY, STATE OF ST

JOHN DOE, Plaintiff,

v.

APEX DELIVERY SERVICES, INC., and ROBERT W. SMITH, Defendants.

Case No. 2026-CV-04471

Dept. 12

FIRST AMENDED COMPLAINT FOR DAMAGES

Filed: June 10, 2026 · Clerk stamp: FILED 06/10/2026 11:02 · OPERATIVE PLEADING

PARTIES & JURISDICTION

1. Plaintiff JOHN DOE is a resident of Riverview Park, ST.
2. Defendant APEX DELIVERY SERVICES, INC. is a commercial delivery company with its principal place of business at 8829 Industrial Way, Suite 400, Metro Center, ST 90210. Registered Agent: CorpServe Registered Agents, LLC.
3. Defendant ROBERT W. SMITH was at all times an employee of Apex acting within the course and scope of his employment.
4. Venue is proper in Metro County, where the collision occurred.

FACTUAL ALLEGATIONS

5. On February 14, 2026 at 14:35, Plaintiff was lawfully turning left from southbound Main St onto 4th Ave on a green arrow.
6. Defendant Smith, driving Apex's commercial 2019 Ford F-150 northbound, disregarded a red signal and struck the driver-side B-pillar of Plaintiff's vehicle. Smith was cited for Failure to Yield Right of Way and Disregarding Traffic Control Device (Report 2026-0214-AX).
7. Plaintiff was trapped and extricated with hydraulic tools, suffered a 12cm facial laceration requiring 42 sutures, an L4-L5 disc herniation requiring microdiscectomy on May 12, 2026, and permanent L5 radiculopathy (5% WPI).

COUNT I — NEGLIGENCE (ROBERT W. SMITH)

COUNT II — VICARIOUS LIABILITY / RESPONDEAT SUPERIOR (APEX DELIVERY SERVICES, INC.)

COUNT III — NEGLIGENT HIRING, TRAINING & ENTRUSTMENT (APEX DELIVERY SERVICES, INC.)

PRAYER FOR RELIEF

Past and future medical expenses; past lost wages and loss of future earning capacity; pain and suffering, disfigurement and loss of enjoyment of life; costs; and pre- and post-judgment interest.

